

25PSCV03529 25PSCV03529

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-08-11

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Case Number: 25PSCV03529 Hearing Date: August 11, 2026 Dept: G

Plaintiff

Carefree Azusa Condominium Association's Motion to Set Aside Dismissal

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Plaintiff

Carefree Azusa Condominium Association's Motion to Set Aside Dismissal is
GRANTED.

BACKGROUND

This

is a nuisance action. Defendant Eric J.

Kamakea (Kamakea) allegedly lives in a condominium unit that is part of
plaintiff Carefree Azusa Condominium Association (the Association). Kamakea allegedly keeps his condominium in a
clean, sanitary, and attractive condition in violation of the Association's Governing
Documents.

On

September 30, 2025, the Association filed the Complaint, alleging causes of
action for (1) injunctive relief, (2) nuisance, and (3) declaratory relief.

On

May 27, 2026, the court dismissed the Complaint based on the Association's

failure to appear at a hearing.

On July

17, 2026, the Association filed this motion to vacate dismissal, which is unopposed.

The

motion is set for hearing on August 11, 2026.

ANALYSIS

The

Association moves to vacate the dismissal of the Complaint based on attorney error. For the following reasons, the motion is GRANTED.

Legal

Standard

If

based on the mistake, inadvertence, surprise, or neglect of the party's attorney, then the court must set aside the entry of default and vacate any resulting default judgment against that party.

(Code Civ. Proc., § 473, subd. (b).)

"[R]elief may be denied if the court finds the default was not in fact the attorney's fault, for example when the attorney is simply covering up for the client's neglect." (Bailey v.

Citibank, Nat. Assn. (2021) 66 Cal.App.5th 335, 349.) The provision based on attorney mistake "does not afford relief to a client who, after inexcusably allowing his default to be entered, hires an attorney whose neglect results in a default judgment"; in other words, the entry of default must be the attorney's fault. (Cisneros v. Vuelve (1995) 37 Cal.App.4th 906, 908.) To obtain relief,

the attorney must include a sworn affidavit attesting to their mistake, and the court must direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel and parties. (Ibid.) In contrast to the discretionary provision based on a party's mistake, the six-month period for a motion to set aside entry of default based on an attorney's mistake runs from the entry of judgment, not the entry of default. (See

Jimenez v. Chavez (2023) 97 Cal.App.5th 50, 60.) "The six-month time limit for granting statutory relief is jurisdictional and the court may not consider a

motion for relief [under Section 473] made after that period has elapsed.” (Manson, Iver & York v. Black (2009) 176 Cal.App.4th 36, 42, emphasis added.)

Courts

liberally grant motions to vacate default judgments when relief is promptly sought and the opposing party is not prejudiced as the law strongly favors resolution on the merits. (Kramer v.

Traditional Escrow, Inc. (2020) 56 Cal.App.5th 13, 28.) Courts only require “slight evidence” to support vacating a default and resolve all doubts in favor of the party seeking relief. (Ibid.) However, “[t]he only occasion for the application of [S]ection 473 is where a party is unexpectedly placed in a situation to his injury without fault or negligence of his own and against which ordinary prudence could not have guarded.” (Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1206.)

Discussion

The

court dismissed the Complaint on May 27, 2026 based on the Association's failure to appear. (See 5/27/2026

Min. Order, p. 1.) The Association filed

this motion on July 17, 2026, before the six-month jurisdictional deadline. (See Mot., p. 1; see also Code Civ. Proc., § 473, subd. (b).)

The Association's counsel attests in his sworn declaration that he failed to calendar the May 27, 2026 hearing. (See Mot., Davis Decl., ¶ 4.) This is a sufficient basis to grant the motion under Code of Civil Procedure 473, subdivision (b). (See Graham, supra,

30 Cal.App.4th at 1660, stating, “No reason need be given for the existence of [mistake, inadvertence, surprise, or neglect].

Attestation that one of these reasons existed is sufficient to obtain relief. . . .”)

Therefore,

the motion to vacate dismissal is GRANTED.

CONCLUSION

For

these reasons, the motion to set aside dismissal is GRANTED.